
Journal

1987 PLD 29

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

1986-11-10

Appeal No.

CRIMINAL MISCELLANEOUS NO. 81 OF 1986

Judge

BEJORE MUHAMMAD AKRAM KHAN

Parties

FA1ZULLAH AND ANOTHER (PETITIONERS) VERSUS MST. PERVEZ AKHTAR AND 3
OTHERS (RESPONDENTS)

Lawyers

BASHRAT AHMAD SHEIKH FOR PETITIONER. MUHAMMAD NISAR MIRZA ADDL. A. G. FOR
THE STATE.AGHA ASHIQ HUSSAIN FOR NON-PETITIONERS NOS. 1 AND 2.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 369 AND 561-A CRIMINAL PROCEDURE
CODE (V OF 1898) - SS. 491 AND 369 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 491

Judgment

This is a review petition against my order dated 8-7-1986, which was passed on the application of Mst. Parvez Akhtar and Zafeer-ud-Din detenus for setting them at liberty under section 491, Cr. P. C.

2. The facts of the case, briefly stated, are

(a) That, according to the version of Mst. Parvez Akhtar and Zafeer-ud-Din, they crossed the Control Line from Village Revand as they had come from their Village Sultan Dhaki due to the impression that certain persons, including two uncles of Mst. Parvez Akhtar, would cause some harm to them. It was stated in their applications that they were married in the Indian-held Kashmir but their love marriage was not liked by the uncles of Mst. Parvez Akhtar, therefore, they were compelled to seek their shelter in Azad Karhmir ;

(b) It appears that Mst. Parvez Akhtar and Zafeer-ud-Din entered Azad Jammu and Kashmir territory on 30-6-1986 and reported themselves to the Reserved Police, who after holding preliminary investigation, handed over them over to the C. I. A. Staff";

(c) The C. I. A. Staff" investigated the case and, according to the report of the Inspector of C. I. A. Staff dated 7-7-1986, Zafeer-ud-Din and Mst. Parvez Akhtar entered the Azad Kashmir territory on 23-6-1986, The C. I. A. Inspector found that the marriage of Mst. Parvez

Akhtar and Zafeer-ud-Din took place in the month of May 198 and the uncles and some other members of the family of Mst. Parve Akhtar weie angry due to this marriage. The Inspector C. I. A. Sta also referred to an lqarnama which was produced before hii showing that Mst.

Parvez Akhtar was married to Zafeer-ud-Dii The Inspector C. I. A. mentioned in his report that the entry of thes two persons was not found detrimental to the interests of on country. On the basis of the report of the C. I. A. Inspector, accepted the petition of the petitioners Mst.

Parvez Akhtar an Zafeer-ud-Din under section 491, Cr. P. C. after recording thei statements and set them at liberty vide my order dated 8-7- 1986 ;

(d) Faizullah and Muhammad Yaqoob also crossed the Control Lin on 22-8-1986 (according to their applications) and moved ai application for review of my order dated 8-7-1986. This applicatioi was moved before my learned brother Mr. Justice Qazi Abdu Ghafoor, J. when I had gone for Haj. The application was no decided by my learned brother and, he was pleased to send this casi to me for disposal vide his order dated 14-9-1986.

3. The petitioners herein i. e. Faizullah and Muhammad Yaqoob nov seek the review of my order dated 8-7-1986 on the ground that Zafeer- ud' Din had eloped with the wife of the son of the petitioner No. 1 Faizullal and he got registered a case in the Police Station Uri against him and tha' the report of the C. I. A. Inspector was not correct. In support of theii contention, the petitioners herein have also produced a photostat copy o: the Nikahnama in favour of Zakar Hussain son of Faizullah Mangra Resident of Sultan Dhakki. He has requested that these persons e, Mst. Parvez Akhtar and Zafeer-ud-Din should be pushed back to the Indian-held Kashmir territory.

4. The arguments in this case were heard on 24-9-1986 at Mirpur and the case was fixed for the production of Mst. Parvez Akhtar before this Court at Muzaffarabad. An application was moved by Rehmatullah Rehmani before this Court for ordering the Police Chinari to register a case

against Zafeer-ud-Din and Mst. Parvez Akhtar and the arguments were also heard in that case. The judgment was reserved. But in the meantime, the Police Chinari registered a case under the orders of District Magistrate Muzaffarabad and it appears that the complainant in that case involved some other persons also besides Zafeer-ud-Din and Mst. Parvez Akhtar. After the registration of the case (under the orders of the District Magistrate Muzaffarabad), Mr. Rehmatullah Rehmani withdrew his application and submitted that he had got the remedy from the District Magistrate Muzaffarabad and the police was now investigating the case.

5. When the Police Chinari registered a case against some persons under the orders of the District Magistrate, Muzaffarabad, an application was moved by one Sadar-ud-Din son of Gul Sher against Masood Ahmed, Faizullah, Muhammad Yaqub, District Magistrate and S. S. P.

Muzaffarabad to the effect that they had committed the contempt of Court. I have issued a notice to the learned Advocate-General to argue the case on 10th of November, 1986 and it is yet to be seen whether the contempt of this Court has been committed or not. Zafeer-ud-Din and Mst. Parvez Akhtar did not appear before this Court and I have been informed by their learned counsel that they were afraid of the police who may arrest them in the criminal case and push them back to the Indian-held Kashmir.

5. Mr. Bashrat Ahmed Shaikh, the learned counsel for the petitioners herein, has sought the review of my order dated 8-7-1986 on the following grounds

(a) That the order passed on 8-7-1986, is not a judgment and, therefore, it can be reviewed ;

(b) That the verdict of this Court contained in the last paragraph needs review. The relevant portion of the last paragraph reads as follows

“The petitioners shall not be pushed back to the Indian-held Kashmir and shall be allowed to enjoy their liberty in Azad Jammu and Kashmir.

Mst. Parvez Akhtar is permitted to live peacefully with her husband Zafeer-ud-Din Azad Kashmir subject to the laws of this territory.”

Mst. Pervaz Akhtar is not wife of Zafeer-ud-Din and, therefore, this part of the order should be omitted or recalled.

(c) That the impugned order can be reviewed under section 561-A, Cr. P. C. and section 369 of the Cr. P. C. does not create any bar in this respect. It has been argued that an order passed under section 491, Cr. P. C. is not a judgment in the light of P L D 1976 Lah. 396;

(d) Mr. Bashrat Ahmed Shaikh, the learned counsel for the petitioners has conceded that there is no law for push back and, therefore, he does not support the view that Mst. Parvez Akhtar and Zafeer-ud-Din should be pushed back despite the fact that there is such a prayer in the application for review itself. ,

Mr. Bashrat Ahmed Shaikh, Advocate has referred in P L D 1967 Lah. 833, on the point that an interlocutory order can be reviewed by the Court at any time. He has also referred to the following authorities

PLD 1969 Quetta 84, last paragraph, PLD 1976 Lah, 396 and PLD 1980 Kar. 294.

6. On the other hand, Agha Ashiq Hussain, Advocate the learned counsel for the non-petitioners,

has replied

(a) That under section 369, Cr. P. C. no judgment can be reviewed. He has submitted that under the Civil Procedure Code, the Civil Court can review its order because there is an express provision for that purpose under the Civil Procedure Code but there is no corresponding provision for review under the Criminal Procedure Code. Therefore, the High Court cannot review its order passed under section 491, Cr. P. C. In this respect, he has referred to the following authorities

AIR 1928 462, AIR 1933 Qalt. 870, AIR 1936 Nag. 132, PLD 1958 Azad J&K6.PLD 1959 S C (Pak.) 119, 1968 P Cr. L J 1818(1), PLD 1971 Lah. 616 and P L D 1971 S C 677.

So, it is wrong to say that the High Court can review its order under section 561-A, Cr. P. C. because that section deals with those inherent powers of the Court which are available to the High Court for the ends of justice.

(b) That Mst. Parvez Akhtar is the lawful wife of Zafeer-ud-Din and in this respect, there is an affidavit of her father Mr. Abdul Latif, Moreover, a photostat copy of Nikahnama was also shown that she is the lawful wife of Zafeer-ud-Din. He has submitted that no doubt there is also an affidavit of Abdul Latif and another Nikahnama in favour of one Zakar Hussain son of Faizullah but when an affidavit is pitted against another affidavit of the same person and when one Nikahnama is pitted against another Nikahnama of the same girl, then the report of the C. I. A.

Inspector, who investigated the case, should be believed. The main argument of Agha Ashiq Hussain, Advocate is that under section 491, Cr.

P. C., the Court has only to see whether a petitioner or petitioners is/are to be set at liberty or not and for that purpose the High Court cannot make an exhaustive inquiry, the High Court has believed the report of the C. I. A. Inspector and passed an order under section 491, Cr. P. C.

for the release of the two detenus who were going to be pushed back to the Indian-held Kashmir. He has further argued that the learned Advocate-General conceded, during the arguments in the Criminal Miscellaneous No. 66 of 1986, the date of decision 8-7-1986, submitted that there is no law for pushing back a person or persons to the Indian-held Kashmir. Therefore, the prayer for review has been made mala fide simply to get the non-petitioners Nos. 1 and 2 pushed back to the Indian-held Kashmir.

7. I have heard the arguments of the learned counsel for the parties and have perused the record of the case carefully.

8. Broadly speaking, it is correct that when a judgment is passed in a criminal case, the Court cannot review its judgment because there is no provision for review under the Criminal Procedure Code. Section 369, Cr. P. C. is clear on this point and it reads

“Court mt to alter judgment.-Save as otherwise provided by this Code or by any other law for the time being in force, in the case of a High Court... by the Letters Patent of such High Court, no Court when it has signed its judgment, shall alter or review the same, except.... to correct a clerical error.”

I agree with Agha Ashiq Hussain, Advocate that a judgment cannot be reviewed by a Criminal Court under the Criminal Procedure Code.

ThisU view finds support from the following authorities

AIR 1928 Lah. 462 which says that there has never been an inherent power in the High Court to alter or review its own judgment once it has been pronounced or signed except in cases where it was passed without jurisdiction or in default of appearance without an adjudication on merits. It was also held in that case that section 561-A, Cr. P. C., does not confer any new powers but merely declares that such inherent powers, as the Court may possess, shall not be deemed to be limited or affected by anything contained in the Code. There is no conflict between sections 369 and 561-A, Cr. P. C.

(») AIR 1933 Cal. 870, in which it was held that section 561-A, Cr. P. C., in no way adds to the powers of the High Court. This section merely declares that such inherent powers as the Court may possess shall not be deemed to be limited by anything contained in the Criminal Procedure Code. The inherent powers of the Court do not include the power to review an order which has been made in the criminal appellate jurisdiction. It was also held that inherent powers of the Court do not include the powers which had been made in the Criminal appellate jurisdiction (874) C-2.

(iii) AIR 1936 Nag. 132.

(iv) PLD 1952 Lah. 587, defines the words "alter", "review", "and", "clerical error",

(v) PLD 1958 Azad J & K 6 which says that no judgment can be reviewed after it has been signed by Judge except to correct clerical errors.

The following authorities were relied upon

A I R 1928 Lah. 462, A I R 1939 Lah. 244 and A I R 1935 All. 566.

The High Court held that in section 561-A, Cr. P. C. there is a definite provision for the review of a judgment. There is no other section in the Code dealing with the right of review and laying down the condition under which that right can be exercised. A Court of competent jurisdiction may decide a case rightly or wrongly and it is not open to the same Judge much less to other Judge of co-ordinate jurisdiction to review that decision

(8) C.

In that case, the Full Bench of the High Court of Allahabad held that the High Court has powers to revoke review, re-call or alter its own earlier decision in a criminal revision and rehear the same only in the following three conditions mentioned in section 561-A, Cr. P. C. namely

(i) for the purpose of giving effect to any order passed under the Code of Criminal Procedure; (ii) for the purpose of preventing abuse of the process of any Court;

(iii) for otherwise securing the ends of justice.

In para. No. 9, it was held that a judgment of the High Court on an appeal is final and cannot be reviewed by the Court in the exercise of its inherent powers for the exercise of such powers would be inconsistent with the principle of finality embodied in section 430.

At page 330, the following answer was given by the Court:-

- (1) That this Court has power to revoke, review, recall or alter its own earlier decision in a criminal revision and rehear the same.
- (2) That this can be done only in cases falling under one or the other of the three conditions mentioned in section 561-A, Cr. P. C. namely for the purpose of giving effect to any order passed under the Code of Criminal Procedure,
- (ii) for the purpose of preventing abuse of the process of any Court;
- (iii) for otherwise securing the ends of justice;
- (vi) PLD 1961 Lah. 333,
- P L D 1962 Kar. 282.
- (vm) PLD 1965 Lah. 570.
- (ix) PLD 1967 Lah. 833.
- (x)PLD 1971 Lah. 616.
- (.xi) 1971 SCMR 618.
- (xii) P L D 1972 Lah. 809.
- (xiii) 1978 PCr.LJ 678.
- (xiv) P L D 1975 Kar. 80.
- (xv) 1978 P Cr. L J 678.
- (xvi) P L D 1980 Kar. 294.

A study of recent authorities shows that the principle of finality of the judgment is attached with full force to decisions or orders of High Court passed in criminal cases except passed without jurisdiction or without giving an opportunity of hearing. The powers for review should be exercised in rare and exceptional cases as it was held in P L D 1980 Kar. 294.

9. When section 369 of the Cr. P. C. was amended in 1923 A. C. in such a way as to show that the High Court had no powers of altering or reviewing a judgment to correct a clerical error, the Legislature did not attempt or intend to deprive the High Court of any inherent power which it had hitherto possessed. Section 561-A, Cr. P. C. does not, in terms, invest the High Court with any power which it did not possess before, but it does refer to an inherent power of which the High Court is already in possession. The High Court possessed no inherent power to review its judgment before the amendments of 1923. Consequently, it cannot be said that section 561-A, Cr. P. C. either modifies the provisions of section 369 or clothes the Court with any fresh power.

10. A very important question arises as to what is meant by the word "judgment" as used in section 369 of the Cr. P. C. The expression "judgment" includes decisions and orders passed in criminal matters on the merits of the case. The word "judgment" has not been defined in the Criminal Procedure Code. In Halsbury's Laws of England, 2nd Ed., Volume 9, paragraphs 260 to 264, it has been stated that judgment in criminal proceedings is indicated to include the final

order in a trial terminating in a conviction or acquittal of the accused. The same has been taken to be the meaning of the term by various High Courts of this such continent. In this respect, the decisions in Emperor v. Chinna Kaliappa Gounden Emperor v. Maheswars Kandayya (2) and Hori Ram Singh (3), be referred to.

Therefore, an order, which sets aside the conviction of a person in exercise of its appellate or revisional jurisdiction by a High Court, is a judgment which cannot be altered or reviewed in view of the provision of the section 369, Cr. P. C. except to correct a clerical error. Although this section (section 369, Cr. P. refers in express terms to "judgment" under Chapter XXII of the Code, still it is clear that the principle laid down therein applies also to final orders which are in the nature of a judgment (A I R 1959 A P 354). Therefore, when a person is set at liberty, after hearing the parties, and after considering the material placed before the

0) 3 Cr. L J 274 (2) 9 Cr. L J 80

(3) A I R 1939 F C 43 Court, it will be considered as a final order which is in the nature of a judgment. However, if an application under section 491, Cr. P. C. is dismissed or refused and a new application is brought for the release of the detenu on fresh ground or grounds, then the previous order shall not stand in the way of the new application under section 491, C. P. C.

It is so because the continued detention of a person is a continuing wrong and fresh application shall be entertainable. I am fortified in my view in this respect by a lucid authority of the erstwhile Lahore High Court in the case of Muhammad Ajmal Khan v. Lt.-Col. Muhammad Shaffat and 4 others In this authority, it was held, per Mr. Justice A. R. Sheikh,-J. that the preponderant view appears to be that the decision of an application under section 491, Cr. P. C. is not a "judgment", i therefore, the question of bar of section 369, Cr. P. C. does not arise and re- consideration of the matter on a successive application is not barred if a case is made out on fresh grounds (457)E.

Mr. Justice Attaullah Sajjad, J. (as he then was) held that the High Court under section 491, Cr. P. C. gives directions or passes orders, but does not deliver a "judgment" in the technical sense of the words as contemplated in Chapter XXVI of the- Criminal Procedure Code.

Proceed- (ings under section 491, Cr. P. C., are not in the form of a trial but they are the substitute for the writ of habeas corpus which was issued under the common law of England, it was held that bar provided in section 369, Cr. P. C. against review relates to original trials and does not apply to habeas corpus matters (661-662)AA and CC. But Mr. Justice K. E. Chaud-han, J. (as he then was), on the other hand was of the opinion that the principle of res judicata was not only confined to judgments but was also applicable to decisions or orders passed in the habeas corpus petitions.

My opinion is that the principle of res judicata applies in all the cases of punitive detention but does not apply to the cases of the preventive detention. When a successive application or applications under section 491, t Cr. P. C., are brought before the High Couit for the release of a detenu, the successive application/applications are entertainable on fresh grounds. But when a person/persons has/have already been released by the Court under section 491, Cr. P. C. and the Court gives valid reasons for the release after hearing the relevant parties, the principle of res judicata will apply. The reason is that the person/persons has/have already been set at liberty and the High Court is left with no power to review its final order which is in the nature of a judgment.

11. I would like to reproduce, the following portions from PLD 1976 Lah. 396 which are very

much relevant in this case

“2. The habeas corpus has its roots in the most valuable and most sacred of human rights i.e. the personal liberty and it has been the endeavour of all civilized societies that the personal liberty of a citizen is not jeopardized and if the restraint on him is illegal and without any legal sanction, the Courts should come to his aid and remove his shackles. The writ of habeas corpus commands general recognition as the essential remedy to safeguard a citizen against imprisonment by State in violation of his constitutional right. It is the basic safeguard for the rights and dignity of the citizens. An English author remarked. “Of what avail are the rights of man if he has no means of escaping arbitrary, improper, or wrongful imprisonment? Habeas corpus is the means whereby the validity of imprisonment is tested.” (An Introduction to the Law by C. Gordon Post).

4.

5. As would appear from the phraseology of section 491, Cr. P. C., the High Court under this section gives directions or passes orders, but does not deliver a judgment in the technical sense of the word as contemplated in Chapter XXVI of the Criminal Procedure Code. It may be pointed out with great respect that in holding that section 369, Cr. P. C. was applicable to proceedings under the habeas corpus, the true import of section 491, Cr. P. C. was not comprehended. The powers to issue directions in the nature of the habeas corpus are a specie in themselves and are quite distinct from the rest of the pattern of the Criminal Procedure Code. These are the powers vested in the High Court to afford relief to people who are suffering illegal restraints by the orders of the Executive or that of any Judicial Tribunal. The British Courts, before the enforcement of Administration of Justice Act of 1960, termed a decision in a habeas corpus matter as an award and not a judgment and this was one of the reasons for holding that no appeal lay against such a decision.

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7. Proceedings under section 491, Cr. P. C. are not in the form of a trial but they are the substitute for the writ of habeas corpus which was issued under the Common Law of England. Chapter XXVI of the Criminal Procedure Code deals with judgments in criminal trials. The Chapter opens with section 366 which pointedly says

“The judgment in every trial in any Criminal Court of original jurisdiction shall be pronounced, or the substance of such judgment shall be explained.”

The bar provided in section 369 against review clearly relates to original trials. It does not apply to habeas corpus matters.

9. There is another reason for coming to the same conclusion. Section 491, Cr. P. C. starts

“Any High Court may, whenever it thinks fit direct.....”

The word 'whenever' according to the dictionary, means. 'At whatever time, on whatever occasion, as soon as, every time that'. It lends continuity of jurisdiction to the High Court. It is true that the Privy Council held in *Matthan v. District Magistrate Trivandrum* and another AIR 1939 P C 213 that after the introduction of section 491, Cr. P. C. the powers of the High Courts in India were not as extensive as that of the English Courts under the Common Law, but the procedure for the decision of habeas corpus matters remains the same as in England and a fresh application has to be decided in the light of the fresh return. In *Heridas Dammiji v.*

Provincial Government AIR 1949 Nag. 201 the word 'whenever' was sought to be given a restricted meanings by saying that it only meant that the High Court could pass an order at any time. But the phrase 'any time' is not confined to a particular hour of day or night, but would ordinarily mean 'any time a fit case is made out'. The interpretation put on this word by the Nagpur High Court, in my view, does not restrict the continuity of the special jurisdiction which the High Court has in such matters. The Legislature purposely used this word in view of the urgency and con-federativeness of the proceedings and where a provision is beneficial to the subject, the words used in the stature are to be given the most extensive meanings. The choice before the Court is either to let a man suffer illegal and unconstitutional restraint because his first attempt to demonstrate the illegality of his restraint had not succeeded, or, to give effect to the intention of law which empowers it to issue directions in the nature of habeas corpus whenever a case is made out for that."

12. There is also another important authority, the case of Ramzan v. Ch. Muhammad Aslam (1) paragraph 29 whereof is reproduced from page 835

"The last question to be dealt with relates to the jurisdiction of this Court to review the orders passed by it under section 491, Cr. P. C. After the dismissal of the petition filed by Naseer (Paramour) under section 491, Cr. P. C. and the orders passed by this Court directing that the detenu be handed over to her father, it cannot be seriously questioned that the same subject cannot be re-opened in review under section 491, Cr. P. C., because in criminal matters, review of judgments, or orders in the nature of judgments, is not permissible. This Court has no inherent jurisdiction (apart from Criminal Procedure Code) to review its orders. The situation, however, has slightly changed by Ramzan petitioner having moved the Court under Article 98 of the Constitution and also by the fact that the same case is now being heard by a special Division Bench. Factually speaking the change is there and it cannot be denied. But the fact remains that the matter is before the same Court. The High Court, (although in a Single Bench) passed the earlier orders under section 491, Cr. P. C., and the (same) High Court is again being asked to re-open the matter in writ jurisdiction before another Bench consisting of two Judges of the Court. In both the relevant provisions, the expression used is the High Court whether the High Court decides the matter in a Single Bench or a Division Bench, the question of Letters Patent Appeal being not relevant, the fact remains that the decision at both the stages is to be by the High Court. I am, therefore, of the view that this special Bench acting under Article 98 of the Constitution cannot override the provisions of the Criminal Procedure Code in so far as the question of review is concerned and cannot modify the order passed by the High Court on 20-4-1971, and reiterated on 26-4-1971 under section 491, Cr. P. C."

13. After considering the relevant authorities, I am of the view that a judgment on merits in a criminal case cannot be reviewed under the Criminal Procedure Code. Similarly a final order having the nature of a judgment cannot be reviewed. But an application under section 491, Cr.

P. C., when dismissed, can be reviewed on a successive application or fresh grounds because the continued detention is a continuing wrong. The powers of review of judgments and final orders having the nature of judgments are limited to the rectification of clerical errors. However, there are certain exceptions to the general rule, for instance, when a case is decided without jurisdiction or without hearing the parties.

14. Coming to the case before me, let me point out that my earlier order was passed on 8-7-1986 after hearing the parties and after considering the material placed before me. I had based my opinion on the report of the C. I. A. Inspector which reads follows

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15. I had also recorded the statement of Muhammad Asghar Khan Head Constable C. I. A. Staff, who in his statement recorded on 7-8-1986, clearly referred to the report of Inspector C. I. A. and deposed that it was mentioned in the brief history of the case by the police that the marriage of Zafeer-ud-Din with Mst. Parvez Akhtar had taken place about one year before their entry into the Azad Jammu and Kashmir territory. No fresh ground or grounds has/have been taken up by the two petitioners herein (Faizullah and Muhammad Yaqoob) because whatever they have stated before this Court, in this review petition, was already stated by one Rehmatullah Rehmani. Mr. Rehmatullah Rehmani had submitted an application on 8*7-1986 that Mst. Parvez Akhtar was taken away by Zafeer-ud-Din from Indian-held Kashmir and that both the persons should be pushed back to the Indian-held Kashmir, The stand of Mr.

Rehmatullah Rehmani was considered by this Court and the detenus were set at liberty on the basis of the report of the C. I. A. Inspector.

Therefore, I am of the view that no fresh ground was taken up by the petitioners herein in the review petition and, therefore, the earlier order needs no review.

16. I have considered the argument that I should delete one or two sentences from my judgment or final order passed on 8-7-1986. The case of the petitioners is that Mst. Parvez Akhtar is the wife of Mr. Zakar Hussain son of Faizullah. The petitioners have relied upon a photostat copy of a Nikahnama in favour of Zakar Hussain and the affidavit of Abdul Latif son of Rehmatullah, the father of Mst. Farvez Akhtar. As the factum of Nikah is disputed and most of the witnesses are on the other side of the Control Line, so it is difficult for me at this stage, to give a clear verdict as to whether Mst. Parvez Akhtar is the wife of Zafeer-ud-Din or of Zakar Hussain. The two affidavits of Abdul Latif, the father of the girl (Mst. Parvez Akhtar) are contradictory and support both the parties and, therefore, they are not helpful. Abdul Latif, the father of Mst.

Farvez Akhtar has come to Azad Kushmir and, therefore, his affidavits are not important. The alleged husband of Mst. Parvez Akhtar, Mr.

Zakar Hussain, has also not come to Azad Kashmir. The two persons who have come to Azad Kashmir are Faizullah and Muhammad Yaqub.

They are stated to be the uncles of Mst. Parvez Akhtar. Mst. Parvez and Zafeer-ud-Din both have stated in their statements recorded on 8-7- 1986 that the uncles of Mst. Parvez Akhtar were not happy for the marriage of Mst. Parvez Akhtar with Zafeer-ud-Din and it was due to their enmity, that they were compelled to cross the Control Line and enter the Azad Jammu and Kashmir territory. This fact finds support from the report made by the C. I. A. Inspector, whose report has already been referred to above. However, if Faizullah and Muhammad Yaqoob (petitioners herein) are keen to get Mst. Parvez Akhtar, they may approach the civil Court of competent jurisdiction and get a decree in favour of Zakar Hussain, if so advised, because the disputed cases of Nikah are always decided by a civil Court. I hold that Mst. Parvez Akhtar is, prima facie, the wife of Mr. Zafeer-ud-Din and as such she is at liberty to live with Mr. Zafeer-ud-Din till a contrary judgment is passed by a civil Court of competent jurisdiction.

17. There is another aspect of the case. The non-petitioner herein, Mst. Parvez Akhtar, belongs to the Mangral family and Zafeer-ud-Din belongs to the Mir or Thakyal family. Both these families are Rajput families but it appears that this case has assumed the shape of a tribal dispute. The police of Chinari has registered a case against Zafeer-ud-Din and Mst. Parvez Akhtar despite the fact that an application was moved for that purpose before the High Court and it was still sub judice. It is upto the police now to see whether the case before them is entertainable or not under the peculiar circumstances of this cases.

Under these circumstances, finding no force in this review petition, it is hereby dismissed.

M. b. a./253/A. H.

easylaw Case No.
1113354

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